

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                        |                                               |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Melanyn Rivas                   | Team:<br>Squad #09                  | CCRB Case #:<br>202105284 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input checked="" type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 08/29/2021 12:00 PM  | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>2/28/2023   | Precinct:<br>121                                       |                                               |                                 |
| Date/Time CV Reported<br>Sun, 08/29/2021 7:18 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 09/06/2021 10:51 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Frederick Daley | 06749  | 950268 | 121 PCT |
| 2. POM Vito Ingrassia  | 14177  | 960706 | 121 PCT |

| Witness Officer(s)       | Shield No | Tax No | Cmd Name |
|--------------------------|-----------|--------|----------|
| 1. SGT Aroosa Yasin      | 04073     | 953587 | 121 PCT  |
| 2. POM Michael Apollonio | 05763     | 958260 | 121 PCT  |

| Officer(s)              | Allegation                                                                                                              | Investigator Recommendation |
|-------------------------|-------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Vito Ingrassia  | Abuse: Police Officer Vito Ingrassia threatened to arrest § 87(2)(b)                                                    | A . Exonerated              |
| B . POM Frederick Daley | Abuse: Police Officer Frederick Daley threatened to arrest § 87(2)(b)                                                   | B . Exonerated              |
| C . POM Vito Ingrassia  | Abuse: Police Officer Vito Ingrassia threatened to damage § 87(2)(b) property.                                          | C . Substantiated           |
| D . POM Frederick Daley | Off. Language: Police Officer Frederick Daley made remarks to § 87(2)(b) based upon the mental disability of § 87(2)(b) | D . Substantiated           |
| E . POM Frederick Daley | Discourtesy: Police Officer Frederick Daley spoke discourteously to § 87(2)(b)                                          | E . Substantiated           |
| F . POM Frederick Daley | Abuse: Police Officer Frederick Daley damaged § 87(2)(b) property.                                                      | F . Substantiated           |
| G . POM Frederick Daley | Abuse: Police Officer Frederick Daley threatened to arrest § 87(2)(b)                                                   | G . Substantiated           |
| H . POM Frederick Daley | Abuse: Police Officer Frederick Daley threatened to arrest § 87(2)(b)                                                   | H . Substantiated           |

## Case Summary

On August 29, 2021, § 87(2)(b) filed the following complaint with IAB, which was then received at the CCRB on September 06, 2021, via log # § 87(2)(b).

On August 29, 2021, at approximately 12:00 p.m., Police Officers Frederick Daley, Vito Ingrassia, Michael Apollonio, and Sergeant Aroosa Yasin, all of the 121<sup>st</sup> Precinct, responded to § 87(2)(b) in Staten Island, after § 87(2)(b) called 9-1-1 because § 87(2)(b) locked him out of their shared home.

After the officers arrived on the scene, § 87(2)(b) told PO Ingrassia and PO Daley that she would not let § 87(2)(b) in because he had anger issues. PO Ingrassia and PO Daley told § 87(2)(b) “You are going to get arrested” (**Allegation A: Abuse of Authority, exonerated**) (**Allegation B: Abuse of Authority, exonerated**). PO Ingrassia went on to tell § 87(2)(b) “You need to let him in because if not we are going to call someone and get the door banged down” (**Allegation C: Abuse of Authority, substantiated**).

After approximately twenty minutes, PO Apollonio, and Sgt. Yasin arrived on the scene. PO Apollonio convinced § 87(2)(b) to open the door; however, after she noticed that § 87(2)(b) had left a “tiny mark” on the door, she restated that he would not be let in and closed the door. PO Daley then yelled out, “You fucking psycho, you let him in, you’re getting arrested” (**Allegation D: Offensive Language, substantiated**) (**Allegation E: Discourtesy, substantiated**). PO Daley who was already standing by the door forcefully opened § 87(2)(b) storm door, kicked the storm door with his right foot breaking the door’s bottom spring, and began body-slammng her main white door (**Allegation F: Abuse of Authority, substantiated**). PO Daley used his expandable baton to strike the white door. As a result of the strikes, § 87(2)(b) door was left with marks (**within Allegation F**). PO Daley then said, “Open the door, I’m going to lock you up” (**within allegation B**).

After § 87(2)(b) provided § 87(2)(b) access to the home, she listened through her camera system as PO Daley told § 87(2)(b) “And if I have to come back you are both going to jail” (**Allegation G: Abuse of Authority, substantiated**), (**Allegation H: Abuse of Authority, substantiated**). In response, § 87(2)(b) told PO Daley, “Don’t threaten me, go check yourself.” The four officers then proceeded to leave the scene.

§ 87(2)(b) and § 87(2)(b) were not arrested and did not receive a summons in relation to this incident.

On September 9, 2021, the investigation obtained two videos from § 87(2)(b) (**Board Review 02, 03**). On September 9, 2021, the investigation obtained a photo of the damage caused by PO Daley striking § 87(2)(b) door (**Board Review 20**). On September 22, 2021, the investigation obtained eight videos captured by the body-worn cameras of PO Daley, PO Ingrassia, PO Apollonio, and Sgt. Yasin (**Board Review 01**).

## Findings and Recommendations

**Allegation (A) Abuse of Authority: Police Officer Vito Ingrassia threatened to arrest § 87(2)(b)**

**Allegation (B) Abuse of Authority: Police Officer Frederick Daley threatened to arrest § 87(2)(b)**

**Allegation (C) Abuse of Authority: Police Officer Vito Ingrassia threatened to damage § 87(2)(b) property.**

It is undisputed that on the date of the incident § 87(2)(b) refused to let § 87(2)(b) into his place of residence, § 87(2)(b) in Staten Island. It is also undisputed that PO Ingrassia and PO Daley threatened to arrest § 87(2)(b).

In her interview with the CCRB, § 87(2)(b) explained that on the date of the incident she had a dispute with § 87(2)(b) and as a result, § 87(2)(b) left § 87(2)(b) house and returned fifteen to twenty minutes later (**Board Review 14**). Upon returning, § 87(2)(b) began yelling at § 87(2)(b) and § 87(2)(b) asked § 87(2)(b) not to “make a scene.” § 87(2)(b) became upset with § 87(2)(b).

and told him “You are not coming in until you cool off.” § 87(2)(b) locked the top and bottom locks of the house door. § 87(2)(b) went on to tell § 87(2)(b) that he would call 911. At approximately 12:00 p.m., § 87(2)(b) was alerted that the police had arrived as she looked through her house’s camera system. § 87(2)(b) noticed PO Ingrassia and PO Daley walking onto her driveway and so she walked out onto her second-floor terrace. At this point, PO Ingrassia and PO Daley were standing in her driveway approximately forty feet below her. PO Ingrassia told § 87(2)(b) “You need to let him in because if not we are going to call someone and get the door banged down.” § 87(2)(b) told PO Ingrassia and PO Daley that she would not let § 87(2)(b) in because he had anger issues. PO Ingrassia and PO Daley then each told § 87(2)(b) “You are going to get arrested.” PO Ingrassia added, “You can’t do this. It’s against the law. You can’t throw someone out.”

In his interview with the CCRB, PO Ingrassia explained that he had responded to a 10-52 dispute at § 87(2)(b) in Stated Island (**Board Review 05**). Upon arriving on the scene, he spoke to § 87(2)(b) who informed him that his wife, § 87(2)(b) had locked him out of the household after they had a dispute. PO Ingrassia did not recall what proof § 87(2)(b) had provided, but he did remember that he and PO Daley were able to verify that § 87(2)(b) did in fact live at the location. PO Ingrassia stated that as § 87(2)(b) stood on the upper deck of her house, he and PO Daley attempted to communicate with her. PO Ingrassia and PO Daley told § 87(2)(b) that she needed to let § 87(2)(b) in the house, otherwise, she could be arrested for illegal eviction. PO Ingrassia explained that he did not remember ever saying that ESU could have taken the door down. PO Ingrassia explained that if the incident had taken any longer, calling ESU would have been an option to consider as at that point § 87(2)(b) was essentially barricaded inside the house. § 87(2)(b) refused to open the door after she was asked repeatedly to open it. PO Ingrassia also explained that it would have been the sergeant’s decision to call ESU. PO Ingrassia explained that it could have been possible that he communicated to § 87(2)(b) that her door could have been taken down. During the interview, PO Ingrassia was shown a clip from PO Daley’s body-worn camera video titled “PO DALEY BWC 1.mp4,” attached to IA 38 of the case file (**Board Review 15**). The video was played from the 17:09 minute mark to the 17:58 mark. In response, PO Ingrassia acknowledged telling § 87(2)(b) that ESU could have come to open the door. Per PO Ingrassia, § 87(2)(b) could have been arrested for illegal eviction, obstructing governmental administration, and disorderly conduct. PO Ingrassia stated that § 87(2)(b) could have been summonsed for disorderly conduct.

In his interview with the CCRB, PO Daley explained that he and PO Ingrassia stood in § 87(2)(b) driveway as they informed § 87(2)(b) that she needed to let § 87(2)(b) in because otherwise she could be arrested for illegal eviction (**Board Review 04**). PO Daley and PO Ingrassia told § 87(2)(b) that she could be arrested approximately five times, but § 87(2)(b) did not comply. Per PO Daley, § 87(2)(b) could have been arrested for illegal eviction and for obstructing governmental administration. Other than not letting § 87(2)(b) into the household there were no other elements of criminality that PO Daley noticed that day.

The video evidence provided by § 87(2)(b) depicts PO Ingrassia telling § 87(2)(b) “Ma’am you are going to get arrested if you don’t let him back in,” at 23 seconds (**Board Review 23**). At minute 1:02, the video captures PO Daley telling § 87(2)(b) “No, no, now she’s going to be arrested.” At minute 1:13, PO Ingrassia says, “You are going to get arrested.”

PO Daley’s BWC captures PO Ingrassia telling § 87(2)(b) “If we can’t get the door open ESU will come open the door and we will come up and get you and we will arrest you” at the 17:13 minute mark (**Board Review 15**).

NYPD Patrol Guide Procedure 221-14, states that it is unlawful for any person to evict or attempt to evict an occupant by, “Changing the lock on such entrance door without supplying the occupant with a key” (**Board Review 06**). Furthermore, the procedure states that members of service are authorized to, “Effect an arrest where the violator: Refuses to permit the occupant to re-enter or who through physical obstruction prevents the occupant from re-entering.”

Per an NYPD Office of The Deputy Commissioner Legal Bureau bulletin, dated August 2019, if an arrest is necessary for the person who is unlawfully evicting a tenant, force may not be used to enter the premises to arrest an owner or owner's agent without an arrest warrant unless there are exigent circumstances (**Board Review 22**).

§ 87(2)(g) § 87(2)(b) locked the entrance door with a lock that § 87(2)(b) did not have a key for, and she did not give him a key for the lock, § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation A** and **Allegation B** be closed as **exonerated**.

§ 87(2)(g) it is recommended that **Allegation C** be closed as **substantiated**.

**Allegation (D) Offensive Language: Police Officer Frederick Daley made remarks to § 87(2)(b) based upon the mental disability of § 87(2)(b)**

**Allegation (E) Discourtesy: Police Officer Frederick Daley spoke discourteously to § 87(2)(b)**

PO Daley's BWC captures him referring to § 87(2)(b) as a "psycho," at the 19:49 minute mark (**Board Review 15**).

Video evidence provided by § 87(2)(b) depicts PO Daley telling § 87(2)(b) "She's, she's been here the whole time you fucking psycho," at the 00:35 second mark (**Board Review 23**).

During her interview with the CCRB, § 87(2)(b) stated that she heard PO Daley yell out, "You fucking psycho you let him in, you're getting arrested" (**Board Review 14**).

During his interview with the CCRB, PO Daley stated that he did not recall saying anything offensive or discourteous toward § 87(2)(b) (**Board Review 04**). PO Daley was shown a clip from his body-worn camera titled, "PO DALEY BWC 1.mp4," attached to IA 38 of the case file (**Board Review 15**). The video was played from the 19:49 minute mark to the 19:54 mark; after which, PO Daley acknowledged hearing his use of the word psycho toward § 87(2)(b). He stated that he used it as a way to reference her behavior. PO Daley was also shown a clip from the video provided by § 87(2)(b) titled "Ring Video Profanity.mp4" which can be found attached to IA 16 of the case file (**Board Review 02**). The video was played from 30 seconds to 38 seconds. PO Daley identified himself in the video frame. After watching the clip, PO Daley was asked whether he was the one saying, "She's been here the whole time, you fucking psycho." PO Daley acknowledged saying the sentence and explained that he made the statement out of frustration given that he had been on the scene for almost two hours.

NYPD Administrative Guide Procedure 304-06 prohibits the use of, "Discourteous or disrespectful remarks regarding another person's ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability" (**Board Review 08**).

The NYPD's mission statement, contained in Patrol Guide Procedure 200-02 includes "Treating every citizen with compassion, courtesy, professionalism" (**Board Review 07**).

§ 87(2)(g) It is therefore recommended that **Allegation D** be closed as **substantiated**.

§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **substantiated**.

**Allegation (F) Abuse of Authority: Police Officer Frederick Daley damaged § 87(2)(b) property.**

It is undisputed that PO Daley caused damages to § 87(2)(b) door.

During her interview with the CCRB, § 87(2)(b) explained that as PO Daley stood by her door,

he ripped open § 87(2)(b) storm door, kicked the storm door with his right foot breaking the door's bottom spring, and began body-slamming her main white door (**Board Review 14**). PO Daley then "banged" on the door with an unknown item he had obtained from his right-side pocket and said, "Open the door, I'm going to lock you up" (see Allegation B above).

In his interview with the CCRB, PO Daley explained that when § 87(2)(b) finally agreed to open her door, she stated that she would let § 87(2)(b) in as long as he spoke nicely to her (**Board Review 04**). § 87(2)(b) approached her main door, stepped away for a couple of minutes, and came back to open the door. PO Daley described § 87(2)(b) door as a white "regular front door" made from metal. PO Daley stated that he did not see anything "glaringly wrong" with the door and did not see any visible damage. Upon opening the door, § 87(2)(b) noticed, "something wrong with the door," and stated that she was no longer letting § 87(2)(b) in, and she closed the door. At this point, PO Daley started "banging on the door" to get § 87(2)(b) to open the door again. PO Daley began knocking at the door with his hand and then switched over to using the back of his expandable baton. PO Daley knocked on the door with his hand five to six times, and then with his baton another five to six times. PO Daley stated that he used his baton to make contact with the door in the area above the doorknob. The expandable baton left a couple of small black streaks on the door. PO Daley stated that there could have been possible indentations left on the door as a result of his use of the expandable baton. No one else made contact with the door in a similar manner.

In his interview with the CCRB, PO Ingrassia explained that PO Daley attempted to open § 87(2)(b) door by banging on the door with his hand and then with his baton (**Board Review 05**). PO Ingrassia did not recall exactly how many times PO Daley knocked at the door, but it could have been two to three times. PO Ingrassia did not remember but believed that there could have been some damage done to § 87(2)(b) door as a result of PO Daley contacting the door.

PO Apollonio's BWC depicts PO Daley forcefully banging at § 87(2)(b) door with his forearm and a closed fist at 00:05 seconds (**Board Review 19**). At 18 seconds, PO Daley strikes the door with his baton. Directly after, PO Daley grabs and twists the doorknob. The video captures the damage right above the door handle caused as a result of PO Daley striking the door with his baton. PO Apollonio's BWC does not capture the "storm door" being opened and kicked, as that door is already open when the BWC starts.

In Onderdonk v. State, 170 Misc. 2d 155 (1996), the court ruled that officers must give due respect to property and may only damage property if doing so is reasonably necessary to carry out their duties (**Board Review 24**).

The Office of The Deputy Commissioner Legal Bureau Bulletin, dated August 2019, notes that it is department policy for officers not to physically assist nor attempt to break into the dwelling unit in order to allow a tenant to re-enter, unless there is an emergency, such as when medicine vital to life is required, police officers would assist in gaining entry for the purpose of securing such medicine (**Board Review 22**).

§ 87(2)(g)

§ 87(2)(b) BWC shows PO Daley forcefully banging at § 87(2)(b) door with his forearm, striking the door with a baton, and then turning her doorknob. § 87(2)(g)

It is therefore recommended that Allegation F be substantiated.

**Allegation (G) Abuse of Authority: Police Officer Frederick Daley threatened to arrest § 87(2)(b)**

**Allegation (H) Abuse of Authority: Police Officer Frederick Daley threatened to arrest § 87(2)(b)**

§ 87(2)(b)

It is undisputed that PO Daley threatened to arrest § 87(2)(b) for a second time after § 87(2)(b) had gained access to § 87(2)(b). Furthermore, it is undisputed that § 87(2)(b) did not commit any arrestable offense.

PO Daley's second BWC, attached to IA 42, captures § 87(2)(b) gaining access to § 87(2)(b) at the 8:31, minute mark. At the 8:38 minute mark, PO Daley says, "If we come back again, somebody is getting locked up," as he leaves the incident location (**Board Review 16**).

In her interview with the CCRB, § 87(2)(b) explained that after she had unlocked her house door to allow § 87(2)(b) entry into the home, she heard PO Daley telling § 87(2)(b) "And if I have to come back you are both going to jail" (**Board Review 14**).

When contacted by the CCRB, § 87(2)(b) stated that he did not want to participate in this investigation (**Board Review 21**).

In his interview with the CCRB, PO Daley stated that he did not remember whether he threatened § 87(2)(b) or § 87(2)(b) with arrest if he had to come back on the scene (**Board Review 04**). During the interview, PO Daley was shown a clip from his BWC titled "PO DALEY BWC 2.mp4," attached to IA 42 of the case file (**Board Review 16**). After the video was played from the 7:50 minute mark to the 8:44 mark, PO Daley was asked what he meant when he said, "If we come back again somebody is getting locked up". PO Daley explained that he was not saying that to anyone specifically, but rather, said it as a blanket statement because § 87(2)(b) could have been arrested. Therefore, if he had to come back to the scene there would not have been as much "begging and pleading." If police presence was necessary on the scene a second time, § 87(2)(b) and § 87(2)(b) would not be allotted so much time to correct the situation amongst themselves.

According to NYPD Patrol Guide Procedure 214-12, it is unlawful for any person to evict or attempt to evict an occupant by, "Changing the lock on such entrance door without supplying the occupant with a key" (**Board Review 06**). Furthermore, the procedure states that members of service are authorized to, "Effect an arrest where the violator: Refuses to permit the occupant to re-enter or who through physical obstruction prevents the occupant from re-entering."

NYPD Patrol Guide Procedure 208-01 specifies that an arrest can be made without a warrant, "For an offense when reasonable cause to believe offense committed in his presence, or for a crime (within the presence or not) and reasonable cause exists that arrested person committed the crime" (**Board Review 10**).

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be substantiated.

§ 87(2)(g)

Therefore, it is recommended that **Allegation H** be substantiated.

#### Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Ingrassia has been a member of service for five and has been a subject in two other CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Daley has been a member of service for ten and has been a subject in three other CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)

**Mediation, Civil, and Criminal Histories**

- Due to a mediation hiatus, this case could not be sent to mediation.
- On September 29, 2021, § 87(2)(b) filed property damage regarding her door with the New York City Comptroller's Office. The property damage claim confirmed the date and time of the incident. The claim listed the following damages broken bottom hinge and scratches on digital lock. The estimated cost of the damage was \$ 349.21 dollars. There is no 50H hearing scheduled. (Board Review 11).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]

Squad: \_\_\_\_\_ 9 \_\_\_\_\_

|               |                                     |                                                           |                             |
|---------------|-------------------------------------|-----------------------------------------------------------|-----------------------------|
| Investigator: | _____<br>Melanyn Rivas<br>Signature | _____<br>Investigator Melanyn Rivas<br>Print Title & Name | _____<br>11/07/2022<br>Date |
|---------------|-------------------------------------|-----------------------------------------------------------|-----------------------------|

|               |                                        |                                                    |                             |
|---------------|----------------------------------------|----------------------------------------------------|-----------------------------|
| Squad Leader: | _____<br>Wassim Abedrabbo<br>Signature | _____<br>IM Wassim Abedrabbo<br>Print Title & Name | _____<br>11/01/2022<br>Date |
|---------------|----------------------------------------|----------------------------------------------------|-----------------------------|

|           |                    |                             |               |
|-----------|--------------------|-----------------------------|---------------|
| Reviewer: | _____<br>Signature | _____<br>Print Title & Name | _____<br>Date |
|-----------|--------------------|-----------------------------|---------------|